

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 10.12.160, AUTHORITY TO IMPOUND ILLEGALLY PARKED VEHICLES, AND SECTION 10.12.170, IMMOBILIZATION, OF CHAPTER 10.12, ADMINISTRATION AND ENFORCEMENT, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, MODIFYING SPECIFIED ENFORCEMENT PROVISIONS REGARDING VEHICLE IMPOUNDMENT."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 10.12.160, Authority to Impound Illegally Parked Vehicles, and Section 10.12.170, Immobilization, of Chapter 10.12, Administration and Enforcement, of Title 10, Vehicles and Traffic, of the City of Cheyenne, Wyoming, is hereby amended as set out in this ordinance.

10.12.160 - Authority to impound illegally parked vehicles.

- A. Any vehicle ~~found parked in any unauthorized place or in violation of this code or any other city ordinance may be towed by the police department in accordance with subsection (B) of this section, except that any~~ located within the territorial jurisdiction of Cheyenne may be towed and impounded, or caused to be towed and impounded, by the police department subject to the following conditions:
1. If a vehicle has been placed on the scofflaw list or any vehicle of a registered owner whose name has been placed on the scofflaw list, the vehicle may be towed and impounded;
 2. If a vehicle is found parked in an unauthorized place or in violation of this code or any other city ordinance, the vehicle may be towed and impounded; and
 3. If a vehicle ~~which~~ was previously immobilized ~~pursuant to~~ under Section 10.12.170(B)(3)-10.12.170(C) of the city code and ~~that~~ has not been released within two (2) business days, the vehicle shall be towed by the police department in accordance with subsection (B) of this section. The owner of the vehicle shall pay all reasonable charges of towing and storage incurred in addition to any penalties imposed for violation of this code or any other city ordinance. and impounded.
- B. ~~When~~ Any vehicle that is towed and impounded by the police department as authorized by this section, or otherwise authorized under city code or laws of this state, ~~members of the police department may tow or otherwise remove a vehicle from a street or highway to the nearest garage or other place of safety, or shall be taken~~ to a garage designated by the police department, or otherwise designated by the city. The registered owner of any vehicle that is towed and impounded under this section shall pay all reasonable charges for towing and

storage of the vehicle in addition to any penalties imposed for violation of this code or any other city ordinance.

- C. Whenever ~~an officer removes the~~ police department tows a vehicle ~~from a street for impoundment~~ as authorized in this section, ~~and the officer knows or is able to ascertain from the vehicle registration records the name and address of the owner,~~ the ~~officer department~~ shall immediately give or cause to be given notice in writing to the registered owner of the ~~fact of~~ vehicle as indicated on the vehicle's registration records. The notice shall advise the owner of the removal, the reasons ~~therefore, for the removal~~ and the place to where the vehicle has been ~~removed towed and impounded~~. In the event the vehicle is stored in a public garage, a copy of the notice shall be given to the proprietor of the garage.
- D. ~~Whenever an officer removes~~ If the police department tows or impounds a vehicle ~~from a street as authorized~~ under this section and does not know and ~~is not able to cannot~~ ascertain the name of the registered owner, or for any other reason is unable to give ~~the~~ notice to the registered owner as ~~hereinbefore~~ provided, by this section, and in the event the vehicle is not returned to the owner within a period of three (3) days, then the ~~officer-police department~~ shall immediately send or cause to be sent a written report of the removal by mail to the ~~state department whose duty it is to register motor vehicles~~ Wyoming department of transportation. The ~~officer department~~ shall file ~~a copy of the written~~ notice with the proprietor of any public garage in which the vehicle may be stored. Notice shall include a complete description of the vehicle, ~~the date, time and place~~ and the place from which ~~removed, it was towed, the date, time and~~ reasons for the removal, and the name of the garage or place where the vehicle is being stored.

10.12.170 - ~~Immobilization.~~ Scofflaw list; immobilization or towing and impoundment.

- A. Definition. ~~For the purposes of~~ As used in this section, the word "immobilize" or "immobilization" means ~~and includes~~ the use of any device which may be attached or affixed to a vehicle and when so attached or affixed ~~shall~~ is intended to render the vehicle immovable.
- B. Scofflaw List. As frequently as practicable, the police department parking administration manager shall prepare and update the "scofflaw list," ~~consisting which list shall consist of vehicles any vehicle, and the registered owner of any vehicle,~~ with three (3) ~~default judgments as a result of~~ or more unpaid parking citations.
- ~~1.~~ Notice that a vehicle or the registered owner of a vehicle ~~is listed~~ has been placed on the scofflaw list shall be served ~~in the following manner:~~
- ~~a.~~ ~~The police department by~~ parking administration manager ~~shall give notice on that~~ registered owner by first class mail, ~~to the registered owner of each vehicle listed on the scofflaw list, stating that the vehicle is listed on the scofflaw list, which notice shall also include the following:~~

2. ~~The content of the notice that a vehicle is listed on the scofflaw list shall contain not less than the following information:~~

a. ~~1.~~ The date and the nature of each ~~ticket overdue and~~ unpaid citation, the amount due on each citation and the vehicle for which the department issued the citation;

b. ~~2.~~ The date ~~of entry of default judgement on~~ for final payment of each unpaid parking citation;

c. ~~3.~~ That a scofflaw list fee of five dollars (\$5.00) shall be imposed to cover administrative costs;

d. ~~4.~~ The total amount currently due;

e. ~~5.~~ That the registered owner shall, ~~no~~ have not less than fifteen (15) days after the date of mailing, to respond to the notice by paying the total amount due; and

f. ~~6.~~ That if the ~~vehicle owner~~ registered owner fails to respond within ~~the prescribed time period, the listed~~ fifteen (15) days after the date of mailing and pay all unpaid parking citations, that any vehicle registered to the owner:

a. ~~shall~~ Shall be subject to immediate immobilization; ~~and or~~

g. ~~b.~~ ~~That if the vehicle is impounded pursuant to Section 10.12.160 of the city code, May summarily be towed and impounded under Section 10.12.160(A)(1) of this chapter and that the registered owner shall also be responsible for the reasonable associated costs, of towing and storage.~~

3. ~~C.~~ ~~A vehicle~~ The vehicle of any registered owner remaining on the scofflaw list after the date ~~indicated~~ stated in the notice issued ~~pursuant to as required under~~ paragraph (B)(2) of this section, is regardless whether the specific vehicle is on the scofflaw list, is subject to immobilization, or to being towed and impounded, by the ~~chief of police or his designee while that police department whenever the~~ vehicle is located upon any public property. The person immobilizing the If a vehicle is towed and impounded, notice shall be provided in accordance with Section 10.12.160 of this chapter. If a vehicle is immobilized, the department shall leave under the windshield wiper or otherwise attach to the vehicle a an immobilization notice advising owner that:

1. ~~The owner that the~~ subject vehicle has been immobilized by the city ~~for due to the owner's~~ failure to pay amounts due for three (3) or more ~~adjudicated unpaid~~ parking ~~infractions; that citations;~~

2. ~~The~~ release of the vehicle from immobilization may be ~~obtained~~ secured by paying all outstanding fines and late fees owed relating to all ~~adjudicated violations, unpaid parking citations,~~ plus ~~all removal, any applicable~~ towing, and storage charges and administrative fees; ~~that~~

3. Unless such payment is made within two (2) business days of the date of the immobilization notice, the vehicle shall be summarily towed and impounded; ~~that~~
4. It is unlawful for any person to remove or attempt to remove the immobilization device, to damage the immobilization device, or to move the vehicle with the immobilization device attached, unless authorized by the chief of police or an authorized agent of the city; and ~~that~~
5. The owner may seek an administrative review of the immobilization by submitting a request to the police department parking administration manager within ten (10) days of the release of the immobilization device.
- 4.—D. ~~If the~~ Upon payment of all outstanding fines, fees and charges by the registered owner ~~or an agent of the owner pays the fines and fees, if any, and all towing and storage charges, if any, of any vehicle immobilized or impounded in accordance with this section,~~ the police department parking administration manager shall remove ~~such vehicle—the registered owner and any listed vehicle of a registered owner~~ from the scofflaw list and authorize ~~its—the~~ release ~~from immobilization of any immobilized or impounded vehicle not later than~~ the next business day.
- 5.—E. ~~If a~~ Any vehicle immobilized pursuant to this section ~~that~~ is not released within two (2) business days, ~~(which does not include including the day the vehicle was immobilized), the police chief shall require the vehicle to~~ shall be removed or cause it to be removed and towed ~~towed and impounded~~ in accordance with ~~the impoundment provisions of~~ Section 10.12.160 of ~~the city code—this chapter.~~
- C.—~~Authorized. When the police chief finds a vehicle parked in violation of the provisions of this code, such person may immobilize the vehicle or cause the same to be done if that vehicle appears on the scofflaw list.~~
- D.—F. Alternate Procedure. ~~The provisions of this—This~~ section ~~are declared~~ is intended to provide ~~an alternative manner for the enforcement of the provisions of enforcement authority under~~ this code pertaining to parking violations and shall not preclude impoundment of ~~the a~~ vehicle ~~parked as~~ otherwise authorized under Section 10.12.160 of ~~the city code—this chapter~~ or any other method of enforcing the parking ordinances.
- E.—G. Penalty. Any person ~~found guilty of tampering who tampers~~ with an immobilization device in an attempt to remove or destroy ~~it, the device~~ is ~~subject to the general penalty provision under~~ guilty of a misdemeanor and punishable as provided by Section 1.24.010 of the city code.
- F.—H. ~~Post Immobilization—Post-Deprivation~~ Review. The registered ~~owner of any vehicle owner immobilized or impounded under this section~~ may seek a post-deprivation review ~~of the immobilization~~ by submitting a written request to the police department parking administration manager within ten (10) days of the ~~placement of the~~

immobilization ~~device and notice on the vehicle,~~ as established by the date of the immobilization notice date. The police department required under subsection (C) of this section. The registered owner of any vehicle towed and impounded as authorized under this section may seek a post-deprivation review by submitting a written request to the police department parking administration manager within ten (10) days of date of the vehicle being towed. The request shall include an explanation by the owner of why the immobilization or tow was allegedly improper.

- I. Upon receiving the request for a post-deprivation review as provided under subsection (H) of this section, the parking administration manager shall provide the request for review to the municipal court judge. Upon timely receipt of such written request, the municipal court judge shall, within a reasonable time as established by the court, conduct a review on the issue of whether the immobilization was proper and shall issue a written decision setting forth the reasons on which the decision is based, provided, however, that any previously adjudicated parking infractions that formed the basis of the vehicle's scofflaw status shall not be subject to the review. The person seeking review shall have an opportunity to present evidence on his or her behalf in accordance with requirements established by the court. review the facts and circumstances that caused the police department to immobilize the vehicle or to tow and impound the vehicle, shall review any relevant documentation, and take into consideration the explanation provided by the owner on why the immobilization or impoundment was allegedly improper and issue his or her decision. Upon review, the parking administration manager may make any determination as necessary and proper to dispose of the case, including the release of the vehicle and the waiver of an applicable fines or fees.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle